

CITY COUNCIL MINUTES

August 16, 2010

The Cadillac City Council met in a scheduled regular meeting on Monday, August 16, 2010, at 7:00 p.m. in the Council Chambers of the Municipal Complex, 200 N. Lake Street, Cadillac, Michigan.

COUNCIL PRESENT: Schippers, Mellema, Spoelman, Stevens, Mayor Barnett

COUNCIL ABSENT: None

Staff Present: Peccia; Homier; Wohlfeill, Adams; Benson

Mayor Barnett called the regular Cadillac City Council meeting to order at 7:03 p.m.

APPROVAL OF AGENDA

2010.194 Agenda approved as presented

Motion was made by Spoelman and supported by Mellema to approve the agenda as presented.

Motion unanimously approved.

PUBLIC COMMENTS

There were no public comments.

CONSENT AGENDA

2010.195 Consent agenda approved as amended

Motion was made by Stevens and supported by Schippers to amend the City Council Minutes from the regular meeting held August 2, 2010, under Good of the Order, as follows:

Council Member Mellema ~~reminded council that~~ *thanked* city staff, some council members, county commissioners, manufacturers and university representatives *when they met in Cadillac* ~~will meet at the Mid Michigan Innovation Center on September~~ *July 21,*

and to approve the banner request from the Cadillac Band Boosters to hang a banner over Mitchell Street from November 1-15, 2010 for their annual craft show.

Motion unanimously approved.

PROCLAMATIONS

PUBLIC HEARINGS

COMMUNICATIONS

CITY MANAGER'S REPORT

The Cadillac Housing Commission conducted an evaluation of their Executive Director, Judy Myers. The Housing Commission approved a recommendation to grant her a 1.5% pay increase retroactive to January 1, 2010 contingent upon city council approval.

2010.196 Pay increase approved

Motion was made by Spoelman and supported by Stevens to approve the recommendation from the Cadillac Housing Commission to grant the Executive Director a 1.5% pay increase retroactive to January 1, 2010.

Motion unanimously approved.

April Buehler, 2001 Pennsylvania Avenue, requested City Council approval to maintain five (5) chickens to be housed in a coop in their rear yard. The chickens would be limited to hens and would be an educational experience for her children's home schooling. She provided signed approval from nearby neighbors. City staff reviewed the request and recommended approval with the following conditions:

- 1) The number of chickens shall be limited to five (5).
- 2) The fowl shall be limited to hens. No roosters shall be maintained.
- 3) All fowl shall be kept in the rear yard in a properly designed coop and run having adequate space to accommodate up to five (5) hens.
- 4) The coop and run shall be located not less than 15 feet from an adjoining property line.
- 5) The coop and run shall be maintained in a sanitary condition and shall be capable of supporting the fowl in a healthy manner throughout all periods of inclement weather.

Michelle Trivieri, 2011 Pennsylvania Avenue, spoke against allowing the chickens, saying she was not contacted and just found out about it. She cited concerns with odor, disease, noise and resale property value. Details of comments made are on file in the city clerk's office.

City Attorney, Mike Homier, said that the plans for the coop should be approved by the building inspector. Because the ordinance to transfer the duties of the building inspector position to other staff has not gone into effect yet, he suggested that the request be tabled until the September 7 meeting.

2010.197 Request to house chickens tabled

Motion was made by Spoelman and supported by Schippers to table the request to house 5 chickens at 2001 Pennsylvania until the September 7, 2010 council meeting.

Motion unanimously approved.

2010.198 Child Safety Expo street closure approved

Motion was made by Stevens and supported by Spoelman to approve the request from the Cadillac Fire Department to close Lake Street between W. Harris Street and W. Pine Street from 8:00 a.m. to 3:00 p.m. on September 11, 2010 for the annual Child Safety Expo.

Motion unanimously approved.

INTRODUCTION OF ORDINANCES AND RESOLUTIONS

Jerry Adams, Community Development Director, told council that the request to rezone 119 Spruce Street from B-2, Central Business District to OS-2, Office Service District had been approved by the Planning Commission.

2010.199 Public hearing set for rezoning 119 Spruce Street, Resolution No. 1942

Motion was made by Stevens and supported by Mellema to adopt Resolution No. 1942 to introduce Ordinance No. 2010-11 to amend the city zoning map by rezoning 119 Spruce Street and to set a public hearing for September 20, 2010.

Motion unanimously approved.

ADOPTION OF ORDINANCES AND RESOLUTIONS

REPORTS OF BOARDS AND COMMISSIONS

MINUTES OF BOARDS AND COMMISSIONS

The minutes of the Wexford County Board of Commissioners from the meetings held July 7 and 21, 2010 and the minutes of the Cadillac Housing Commission from the meeting held July 19, 2010 were presented for information only.

APPOINTMENTS

PUBLIC APPEARANCES

There were no public appearances.

TABLED ITEMS

2010.200 Request to house chickens tabled

Motion was made by Spoelman and supported by Schippers to table the request to house five (5) chickens at 2001 Pennsylvania until the September 7, 2010 council meeting to allow Ordinance No. 2010-10, regarding with the transfer of building inspector duties, to go into effect.

Motion unanimously approved.

GOOD OF THE ORDER

Council Member Spoelman reminded council that City Manager Peccia's first year anniversary will be coming up in early November and that his contract requires an evaluation at that time. Spoelman volunteered to head up the evaluation committee and requested that this be on the September 7, 2010 agenda.

Council Member Schippers reminded council of the Rotary Family Concert to be held on Friday, August 20 in the Rotary Performing Arts Pavilion.

Mayor Barnett told council that he attended the Salute to Soldiers at the Wexford County Fair Grounds held that day.

Council Member Stevens requested confirmation that the next scheduled city council meeting is on Tuesday, September 7 instead of Monday, September 6, due to the Labor Day holiday.

Council Member Mellema told council that on August 20 he will be taking six citizens to the Mid Michigan Innovation Center in Midland to view operations. Also on the 20th, Jerry Adams will be giving a talk in Mesick and on the 26th he will be speaking to the Manton Chamber of Commerce on the job creation plan.

City Manager Peccia asked council to go into closed session for discussion of a confidential written legal opinion and to hear an update on pending civil litigation.

2010.201 Move to closed session approved

Motion was made by Mellema and supported by Schippers to move to closed session to discuss a confidential written legal opinion and to hear an update on pending litigation.

Motion unanimously approved.

At 8:00 p.m., Council moved to the conference room for a closed session discussion.

At 9:42 p.m. Council returned to the council chambers.

2010.202 Resumption of regular meeting approved

Motion was made by Schippers and supported by Spoelman to return to the regularly scheduled city council meeting.

Motion unanimously approved.

2010.203 Substitution of City Attorney approved

Motion was made by Mellema and supported by Stevens to substitute Foster, Swift, Collins & Smith as official attorney of record for the appeal of the Haring Township vs City lawsuit.

Motion unanimously approved.

ADJOURNMENT

As there was no further business to come before the City Council, the meeting was adjourned at 9:43 p.m.

Respectfully submitted,

William S. Barnett, Mayor

Christine L. Benson, City Clerk

